



U.S. Department
of Transportation

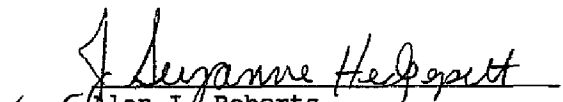
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8545 (EXTENSION)
FIRST REVISION July 13, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8545 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 18 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Hercules, Inc.
Wilmington, DE

January 10, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 8545

400 Seventh Street, S.W.
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1. Hercules Incorporated, Cumberland, Maryland, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of liquid high explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of limited quantities of liquid high explosives in packagings which are not presently authorized, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Hercules Incorporated's application dated December 3, 1980, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquid high explosives, classed as Class A explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). High explosive, liquid.

5. REGULATION AFFECTED. 49 CFR 173.62.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is inside polyethylene bottle not exceeding 1 liter capacity constructed in accordance with the specifications shown on the sheet titled "1000 ML CONTAINER" attached to the application. The bottle must also be capable of passing the drop test procedure shown on the same sheet. The bottle shall be closed with a rubber stopper secured in place with pressure-sensitive tape. Sufficient outage must be provided in the bottle so that it will not become liquid full at 130°F. The bottle must be placed in two 7 mil polyethylene bags and the opening of each bag twisted closed and taped. The twisted end of each bag shall be folded down and taped again. The bagged bottle shall be placed on a layer of sawdust at least 2 inches thick on the bottom of a DOT Specification 37A -60 metal drum. All empty space in the drum shall be filled with tightly packed sawdust, and the drum cover secured in place. The specification 37A drum shall be placed in a DOT Specification 15A wooden box of such size that the drum may be cushioned on sides, top and bottom with at least a two inch thickness of vermiculite.

8. SPECIAL PROVISIONS.

a. Each box shipped under this exemption must be plainly marked on top and one side or end "HIGH EXPLOSIVES - DANGEROUS" in letters not less than 7/16 inches in height. The tops of boxes must be marked "THIS END UP".

b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. January 15, 1983.

Issued at Washington, D.C.:

FEB 23 1981



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: FHWA